Galveston County District Court

Cause No. 2024-CV-0035

Victor Gibson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	November 21, 2024
Plaintiff's counsel:	Colleen Orr, Conley & Stephenson Law Group

PARTIES

Plaintiff Victor Gibson is an individual residing in Texas who was injured in a motor vehicle collision. Defendant is an automobile insurance carrier authorized to transact business in the State of Texas, which issued the policy under which Plaintiff seeks benefits and against which this action is brought.

FACTS

On June 4, 2024, Plaintiff was lawfully driving through a signalized intersection in Sugar Land when another vehicle entered the intersection and struck the side of Plaintiff's vehicle. The impact occurred with force sufficient to spin Plaintiff's vehicle and push it into the adjacent lane. Plaintiff reported the collision to the responding officer and to Defendant. Plaintiff submitted a claim under the applicable coverage, supplied the required documentation, and cooperated with Defendant's investigation. Defendant has not paid the claim in an amount sufficient to cover Plaintiff's losses.

NEGLIGENCE

The at-fault driver failed to yield the right of way and failed to keep a proper lookout, in violation of the Texas Transportation Code. Defendant owes Plaintiff a contractual duty to evaluate and pay covered claims in good faith and in accordance with the policy terms. Defendant breached that duty by unreasonably delaying its evaluation, failing to give fair consideration to the injury evidence, and offering less than the amount owed under the policy. Defendant's conduct also violates the Texas Insurance Code, including the unfair settlement practice provisions, and entitles Plaintiff to recover statutory damages and attorney's fees.

DAMAGES

As a direct result of the collision, Plaintiff suffered a concussion with headaches, dizziness, light sensitivity, and memory difficulties. Plaintiff has incurred medical expenses for emergency care, imaging, and ongoing treatment, has lost wages from missed work, and continues to experience pain, impaired concentration, and diminished quality of life. Plaintiff seeks recovery of all benefits due under the policy, damages for the breach of contract, statutory penalties, pre- and post-judgment interest, costs of court, and attorney's fees. Plaintiff demands judgment against Defendant in the amount of $206,000.00.